

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS**

GABARRI FINDLEY,

Plaintiff,

-against-

**THE CITY OF NEW YORK; P.O.
NICOLA APADULA; LT. LAWRENCE
CARSON; JOHN DOE #1**

Defendants.

Index No.:

SUMMONS

Plaintiff designates Kings County as
the place of trial

To the above-named Defendants:

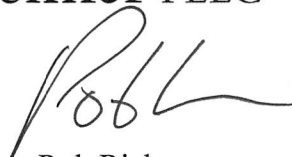
You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorney(s) within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

The basis of venue is the location where the claims arose.

Dated: New York, New York
September 26, 2021

Rickner PLLC

By:



Rob Rickner

14 Wall Street, Suite 1603
New York, New York 10005
Phone: (212) 300-6506
Fax: (888) 390-5401
Attorney for Plaintiff

TO:

THE CITY OF NEW YORK
P.O. NICOLA APADULA
LT. LAWERENCE CARSON
JOHN DOE #1
New York City law Department
100 Church Street
New York, New York 10007

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS****GABARRI FINDLEY,**

Plaintiff,

-against-

**THE CITY OF NEW YORK, P.O.
NICOLA APADULA; LT. LAWRENCE
CARSON; JOHN DOE #1,**

Defendants.

Index No.:

VERIFIED COMPLAINT

Plaintiff GABARRI FINDLEY, by his attorneys, Rickner PLLC, complaining of the Defendants, alleges, upon information and belief and personal knowledge:

NATURE OF THE CASE

1. This is a civil rights action brought against the City of New York and members of the New York City Police Department ("NYPD"), who violated Plaintiff's rights under the Constitution of the United States.

JURISDICTION

2. This action is brought pursuant to 42 U.S.C. §§ 1983 and 1988 for violations of Plaintiffs rights under the Fourth, Fifth and Fourteenth Amendments to the Constitution of the United States.

3. An award of costs and attorneys' fees is authorized pursuant to 42 U.S.C. § 1988.

4. Venue is properly laid in the Supreme Court of the State of New York, County of Kings, because the Plaintiff's claims arose in the County of Kings.

5. Plaintiff has been damaged in a sum which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

PARTIES

6. Plaintiff is, and was at all times relevant to this action, a resident of Kings County in the State of New York.

7. Defendant Police Officer Nicola Apadula (Shield No. 26626; Tax ID 954496) (hereinafter “Apadula”) was at all relevant times an NYPD officer, employed by the City of New York. At all relevant times described herein he was acting under color of New York state law, and acting in the course and scope of his duties. He is sued in his individual capacity.

8. Apadula is entitled to indemnification by the City of New York under New York law for any liability arising from his conduct described herein.

9. Apadula is entitled to indemnification by the City of New York pursuant to contract for any liability arising from his conduct described herein.

10. Defendant Lt. Lawrence Carson (Tax ID 938178) (hereinafter “Carson”) was at all relevant times an NYPD officer, employed by the City of New York. At all relevant times described herein he was acting under color of New York state law, and acting in the course and scope of his duties. He is sued in his individual capacity.

11. Carson is entitled to indemnification by the City of New York under New York law for any liability arising from his conduct described herein.

12. Carson is entitled to indemnification by the City of New York pursuant to contract for any liability arising from his conduct described herein.

13. Defendant John Doe #1 (Shield No. Unknown) (hereinafter “Doe #1”) was at all relevant times described herein a corrections officer on Riker’s Island, employed by the City of New York. At all relevant times described herein he was acting under color of New York state law, and acting in the course and scope of the duties. He is sued in an individual capacity.

14. The true name and shield number of Defendant Doe #1 is not currently known to the Plaintiff. However, he is an employee or agent of the NYPD by virtue of his employment with the City's Department of Correction.

15. Accordingly, he is entitled to representation in this action by the New York City Law Department ("Law Department") upon their request, pursuant to New York State General Municipal Law§ 50-k. The Law Department, then, is hereby put on notice (a) that Plaintiff intends to name said officer as a defendant in an amended pleading once the true name and shield number is known and (b) that the Law Department should immediately begin preparing P.O. Doe's defense in this action.

16. Collectively, Officer Apadula and Lt. Carson are referred to as the "NYPD Defendants."

17. At all times relevant herein, the NYPD Defendants and Doe #1 were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the City of New York and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the NYPD and/or DOC at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the NYPD and/or DOC and incidental to the lawful pursuit of their duties as officers, employees and agents of the NYPD and/or the DOC.

THE VIOLATION OF PLAINTIFF'S CIVIL RIGHTS

18. On November 21, 2019, Plaintiff was lawfully inside the home in which he was staying at 33 Norstrand Avenue in Brooklyn, New York.

19. Plaintiff was taken from inside of the home, detained, and arrested by the NYPD Defendants without a warrant.

20. The NYPD Defendants transported Plaintiff to the 79th precinct where he was interrogated without the issuance of *Miranda* warnings, and then placed into a lineup to be viewed by the complaining witness in an open robbery investigation.

21. The line-up was conducted in an inappropriate and unduly suggestive manner in violation of Plaintiff's Due Process rights.

22. Plaintiff was subsequently re-arrested and detained as a result of the NYPD Defendants' actions: first at the 79th Precinct, then Central Booking, and finally at Riker's Island from November 21, 2019 to November 24, 2019, when he posted bail.

23. The NYPD Defendants initiated prosecution without probable cause and using false evidence and statements, in the criminal action designated *People v. Findley*, Docket No. CR-041471-19KN.

24. These wrongful charges were dismissed on the People's motion on or about December 12, 2019.

25. While on Riker's Island, Plaintiff was assaulted and battered by JOHN DOE #1, a corrections officer, including a close-fist punch. Plaintiff did not receive any medical attention for his injuries.

THE INJURIES TO PLAINTIFF

26. This action seeks damages on behalf of Plaintiff for the extraordinary emotional pain and suffering, loss of liberty, and injuries to his person, that Plaintiff was forced to endure as a consequence of Defendants' decidedly wrongful actions.

27. Defendants' actions were wanton, reckless, and malicious, as well as in blatant disregard of Plaintiff's civil rights, and as such they are liable for punitive damages.

28. All of the causes of action pleaded herein fall within one or more of the exceptions set forth in NY Civil Practice Law & Rules 1602 with respect to joint and several liability.

**FIRST CLAIM FOR RELIEF:
FALSE ARREST UNDER 42 U.S.C. § 1983
AGAINST THE NYPD DEFENDANTS**

29. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

30. The NYPD Defendants restrained and arrested Plaintiff without probable cause.

31. That by virtue of the aforementioned acts by the NYPD Defendants, Plaintiff was deprived of civil rights guaranteed under the Fourth Amendment to the United States Constitution to be free from unreasonable or unlawful searches and seizures, and the NYPD Defendants therefore are liable to Plaintiff for damages under 42 U.S.C. § 1983.

32. As a result of the above unconstitutional conduct, Plaintiff was caused to suffer physical, economic, and emotional injuries, as well as a deprivation of liberty.

33. As a result of the above unconstitutional conduct, the NYPD Defendants are liable for punitive damages.

**SECOND CLAIM FOR RELIEF:
PROSECUTION WITHOUT PROBABLE CAUSE UNDER 42 U.S.C. § 1983
AGAINST THE NYPD DEFENDANTS**

34. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

35. The NYPD Defendants initiated a prosecution against Plaintiff without probable cause and that prosecution resolved in a complete dismissal of the charges, in favor of Plaintiff.

36. That by virtue of the aforementioned acts by the NYPD Defendants, Plaintiff was deprived of civil rights guaranteed under the Fourth Amendment to the United States Constitution to be free from unreasonable or unlawful searches and seizures, and the NYPD Defendants are therefore liable to Plaintiff for damages under 42 U.S.C. § 1983.

37. As a result of the above unconstitutional conduct, Plaintiff was caused to suffer physical, economic, and emotional injuries, as well as a deprivation of liberty.

38. As a result of the above unconstitutional conduct, the NYPD Defendants are liable for punitive damages.

**THIRD CLAIM FOR RELIEF:
DUE PROCESS VIOLATIONS UNDER 42 U.S.C. § 1983
AGAINST THE NYPD DEFENDANTS**

39. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

40. The NYPD Defendants conducted an unduly suggestive lineup procedure in violation of Plaintiff's Due Process rights.

41. That by virtue of the aforementioned acts by the NYPD Defendants, Plaintiff was deprived of due process and trial rights guaranteed under the Fifth, Sixth, and Fourteenth Amendments to the United States Constitution, and the NYPD Defendants are therefore liable to Plaintiff for damages under 42 U.S.C. § 1983.

42. As a result of the above unconstitutional conduct, Plaintiff was caused to suffer physical, economic, and emotional injuries, as well as a deprivation of liberty.

43. As a result of the above unconstitutional conduct, the NYPD Defendants are liable for punitive damages.

**FOURTH CLAIM FOR RELIEF:
EXCESSIVE FORCE UNDER 42 U.S.C. § 1983
AGAINST DOE #1**

44. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

45. Doe #1 used physical force against Plaintiff.

46. Doe #1 engaged in the use of force that was excessive, malicious, gratuitous, and with the intention of inflicting physical and emotional harm to plaintiff.

47. That by virtue of the aforementioned acts, Plaintiff was deprived civil rights guaranteed under the Fourth Amendment to the United States Constitution to be free from the use of excessive force as a pretrial detainee, and Doe #1 is therefore liable to Plaintiff for damages under 42 U.S.C. § 1983.

48. As a result of the above unconstitutional conduct, Plaintiff was caused to suffer physical, economic, and emotional injuries.

49. As a result of the above unconstitutional conduct, Doe #1 is liable for punitive damages.

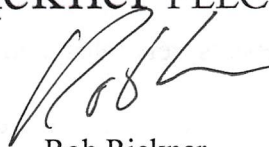
WHEREFORE, Plaintiff demands the following relief jointly and severally against all of the Defendants:

- a. Compensatory damages;
- b. Punitive damages;
- c. The convening and empaneling of a jury to consider the merits of the claims herein;
- d. Costs and interest and attorney's fees;
- e. Such other and further relief as this court may deem appropriate and equitable.

Dated: New York, New York
September 26, 2021

Rickner PLLC

By:



Rob Rickner

14 Wall Street, Suite 1603
New York, New York 10005
Phone: (212) 300-6506
Fax: (888) 390-5401
Attorney for Plaintiff

ATTORNEY'S VERIFICATION

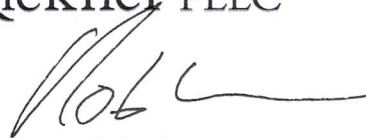
I, Rob Rickner, an attorney duly admitted to practice before the Courts of the State of New York, affirm the following to be true under the penalties of perjury:

- 1) I am the attorney of record for the Plaintiff.
- 2) I have read the annexed Verified Complaint and know the contents thereof, and the same are true to my knowledge, except those matters therein which are alleged upon information and belief, and as to those matters, I believe them to be true. My beliefs, as to those matters therein not stated upon knowledge, are based upon facts, records, other pertinent information contained in my files.
- 3) This verification is made by me because Plaintiff does not reside in the County where I maintain my offices.

Dated: New York, New York
September 26, 2021

Rickner PLLC

By:



Rob Rickner

14 Wall Street, Suite 1603
New York, New York 10005
Phone: (212) 300-6506
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Attorney for Plaintiff